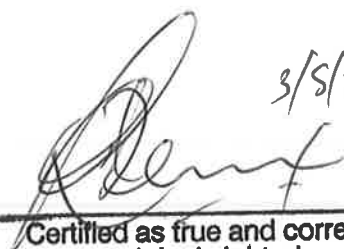


WEACH

PTY LIMITED ACN 101 246 539

AS TRUSTEE FOR

THE LENNOX FAMILY TRUST


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ROBERTS PARTNERS
Barristers & Solicitors

P.O. Box 656
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Victoria 3199

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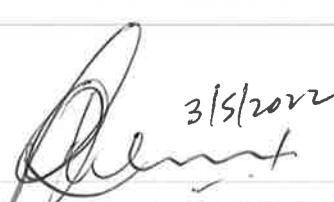
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DEED OF SETTLEMENT OF DISCRETIONARY TRUST

THIS DEED OF Settlement is made the day mentioned in the Schedule hereto

BETWEEN the person or persons named and described in the Schedule hereto as Settlor (hereinafter called the Settlor) of the one part

AND the person or persons named and described in the Schedule hereto as the Trustee or Trustees (hereinafter called the Trustee) of the other part

WHEREAS

- A. The Settlor is desirous of making provision for the persons hereinafter referred to as and in the manner hereinafter set out.
- B. For that purpose the Settlor has, upon the execution of this Deed transferred or is about to transfer to the Trustee, the settled sum referred to in the Schedule.
- C. The Trustee has consented to become the Trustee of the Fund upon the trusts and with and subject to the powers and provisions hereinafter set out.

NOW THIS DEED WITNESSETH AS FOLLOWS:

IN this Deed the following expressions shall, unless there is something repugnant to or inconsistent with the subject matter, have the meaning hereunder set out:

- 1.1 the ***Specified Beneficiary*** and the ***Specified Beneficiaries*** shall mean the person or persons if any named and described as such in the Schedule.
- 1.2 the ***General Beneficiaries*** shall mean and include:
 - 1.2.1 the Specified Beneficiary or the Specified Beneficiaries (as the case may be), and
 - 1.2.2 the parents, brothers, sisters, spouses, widows, widowers, remoter issue, lineal or lateral relation, children and next of kin of the Specified Beneficiary or Specified Beneficiaries and the spouses, widows, widowers, children and grandchildren of such brothers, sisters, spouses children and remoter issue and next of kin which terms shall include any person filling any of the above categories by reason of adoption or by reason of a bona fide domestic relationship and includes such a relationship between persons of the same gender and any children forming part of the family established by reason of a bona fide domestic relationship and by reason of a bona fide domestic relationship between persons of the same gender as if such children had been or have been legally adopted, and

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- 1.2.3 any corporation wherever incorporated or resident any share in which is beneficially owned or held by any General Beneficiary or by the Trustee of any trust or Settlement under which any General Beneficiary has any interest whether absolute or contingent or by way of expectancy and whether liable to be defeated by the exercise of any power or appointment or revocation or to be diminished by the increase of the class to which he or she belongs, and the Trustee of any Trust or Settlement in which a General Beneficiary has any interest whatsoever whether capital or income and whether absolute contingent presumptive or prospective, and the Trustee of any Trust or Settlement, including a Superannuation Fund, which the Trustee may at any time and from time to time nominate in writing as a General Beneficiary and whether or not any such Corporation Trust or Settlement is in existence at the date of this Settlement, and
- 1.2.4 an Executor and Trustee of the Will and Administrator of the Estate of a General Beneficiary in that capacity, and an administrator of the Estate of a General Beneficiary appointed under legislation affecting persons suffering an incapacity, and
- 1.2.5 a person who has the legal custody of a General Beneficiary, and
- 1.2.6 any charity or charitable, educational, benevolent, sporting or religious institution person or persons, corporations or associations howsoever constituted whom the Trustee in the Trustee's absolute discretion considers worthy of receipt of funds either for charitable, educational, benevolent, sporting or religious purposes or for the relief of poverty or for scientific or public educational purposes including a public hospital or any hospital which is carried on by a society or association otherwise than for the purpose of profit or gain to the individual members of that society or association, and
- 1.2.7 such additional persons if any as are named described or defined in the Schedule as members of the class of General beneficiary

PROVIDED HOWEVER

- 1.2.8 that the following persons, namely:
- (a) the Settlor or any person claiming under or in right of the Settlor
 - (b) the Guardian
 - (c) the Trustee
 - (d) any corporation and the trustees of any trust or Settlement in which any of the persons described in paragraph (a) - (c) of this proviso have any beneficial interest or share or expectancy of whatsoever nature so long as such interest or share or expectancy continues shall not be General Beneficiaries unless (except in the case of Settlor) they are Specified Beneficiaries or are otherwise specifically included in the Schedule.

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- 1.2.9 that the Trustee at any time and from time to time may declare in writing (without giving any reason for the declaration) that any Beneficiary shall be excluded from the class of General Beneficiaries notwithstanding that but for such exclusion the Beneficiary would be by reason of one or more of the matters or circumstances hereinbefore referred to have been a General Beneficiary and the class of General Beneficiaries shall as from the date of the making of any such declaration be modified accordingly.
- 1.2.10 that the Trustee at any time and from time to time may declare in writing provided that the Trustee shall first have obtained the consent of the Specified Beneficiary or Beneficiaries (provided they shall be living at that time) or where such Beneficiary or Beneficiaries are infants the Guardian that a person, corporation or institution not included in the definitions 1.2.2 to 1.2.7 inclusive shall from the date of the declaration be a General Beneficiary.
- 1.3 **"Accounting Period"** shall mean each period of twelve months ending on the 30th day of June in each year PROVIDED first that the period commencing on the date hereof and ending on the 30th day of June next shall be an Accounting Period and secondly that the period commencing on the first day of July prior to the Vesting Day and ending on the Vesting Day shall be an Accounting Period.
- 1.4 the **"Appointor"** shall mean the person or persons successively named or described as such in the Schedule or determined according to the provisions hereof.
- 1.5 **"beneficiary"** shall mean any of the General Beneficiaries and **"expectancy"** shall include any possible expectancy or expectant heir.
- 1.6 **"charity"** shall mean any organisation, group of persons or corporation whose Rules Constitution Charter or Articles provide that such entity shall:
(a) be non-profit making; and
(b) exist to provide charitable support help and assistance to persons in need and need not necessarily be a charity as defined by taxation law.
- 1.7 the **"Guardian"** shall mean the person or persons (if any) successively named or described as such in the Schedule.
- 1.8 **"place of proper law"** shall mean the state or country named in the schedule and if none be named the place of residence of the Trustee (and if more than one a majority) and if the Trustee be a corporation then the state or country in which the Trustee shall have its registered office.
- 1.9 **"remoter issue"** shall mean and include any issue of any child and shall include any adopted child or children of such child or issue.
- 1.10 **"spouse"** shall mean and include:
(a) the wife or husband for the time being of a beneficiary;
(b) any previous wife or husband of a beneficiary;

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- (c) any person who the Trustee shall determine from time to time to be in a bona fide domestic relationship with a beneficiary who may if the Trustee is satisfied be persons of the same gender;
 - (d) the widow or widower for the time being of a beneficiary whether such person shall have remarried or not;
 - (e) any person who the Trustee shall determine after the death of a beneficiary to have been in a bona fide domestic relationship with that beneficiary during the life of such beneficiary which person may include a person of the same gender as the deceased beneficiary.
- 1.11 **"Taxation Law"** shall mean the Income Tax Assessment Act 1936 and all amendments to and substitutions for and all regulations and rules made from time to time thereunder.
- 1.12 **"the Trust Fund"** shall mean the said settled sum all moneys investments and property paid or transferred to and accepted by the Trustee as additions to the Trust Fund the accumulations of income hereinafter directed or empowered to be made all accretions and additions to the Trust Fund from whatsoever source and the investments and property from time to time representing the money investments property accumulations accretions and additions or any part or parts thereof respectively, and may be divided into such number, category, or class of parts as the Trustee may from time to time for the benefit of the fund or any beneficiary or beneficiaries determine.
- 1.13 **"the Trustee"** shall mean the person named as such in the Schedule or other Trustee or Trustees for the time being of this Settlement and shall include two or more Trustees and in the event that "the Trustee" shall be a corporation, a corporation.
- 1.14 **"the Vesting Day"** shall mean the first to occur of the following dates, namely:
 - (a) the day if any specified as such in the Schedule,
 - (b) the date of expiration of the perpetuity period applicable to this Settlement,
 - (c) the day appointed by the Trustee with the consent of the Guardian if there is any Guardian in office at the time of the said appointment but otherwise without any consent.
- 1.15 the singular shall mean and include the plural and vice versa and any gender shall mean and include all other genders.
- 1.16 the expression **"person"** shall include a corporation, legal entity, an individual, or body of persons.
- 1.17 references to any statutory enactment shall mean and be construed as references to the enactment as amended and modified and re-enacted from time to time.
- 1.18 where any doubt exists as to the interpretation of any part, word or phrase the same shall be interpreted in accordance with the rules of common sense and as far as is possible for the benefit of the beneficiaries.

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- 1.19 where any part or clause of this deed is found to be invalid or of no effect then the rest of this deed shall be read down so as to remove the invalid or ineffective part but so as to preserve as much as possible of the remainder of this deed which shall continue to have full force and effect.

2. ***PERPETUITY PERIOD***

The ***perpetuity period*** applicable to the dispositions effected by this Settlement under the rule against perpetuities shall be the period described by the proper law of this Trust or the period described in the Schedule whichever shall be the shorter period.

3. ***ESTABLISHMENT OF THE TRUST***

In consideration of the premises the Settlor as Settlor ***HEREBY DECLARES*** that the Trustee shall and the Trustee ***HEREBY DECLARES*** that the Trustee will henceforth stand possessed of the Trust Fund and of the income thereof upon the trusts with and subject to the powers and provisions hereinafter expressed concerning the same.

4. ***DETERMINATION AND APPLICATION OF INCOME***

4.1

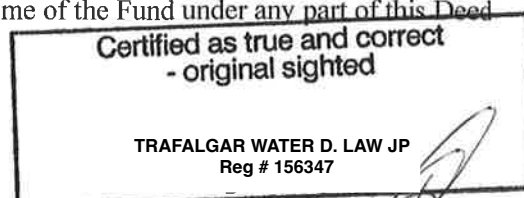
4.1.1 The Trustee shall at the end of each financial year determine the net income of the Trust fund arising during that financial year having regards to the provisions of Paragraph 4.1.2 hereof:

4.1.2 The Trustee in determining the income derived by the Trust Fund during each financial year may determine whether any receipt or outgoing or any sum of money or investment is to be regarded as being on account of corpus or an account of income or on some other account and:

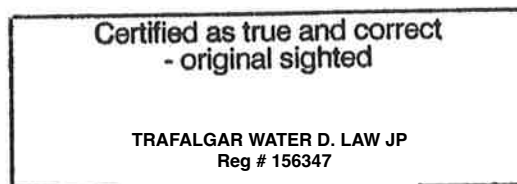
- (a) treat as income any receipt profit or gain which is assessable income of the Trust Fund for the purposes of determining the "net income" of the Trust in accordance with the Taxation Law.
- (b) distinguish income of any type or character from income of another type or character
- (c) pay or deal with income of any type or character in one manner and the income of another type or character in a different manner and
- (d) pay apply or deal with the whole or part of any receipt profit or gain arising or derived from another identified asset or source in a different manner

4.1.3 If the Trustee should fail to make a determination in accordance with paragraph 4.1 hereof the income of the Trust Fund for that financial year shall be the "net income" of the Trust Fund determined in accordance with the Taxation Law.

4.2 For the purpose of any determination by the Trustee concerning the income of the fund and/or the distribution of the income of the Fund under any part of this Deed



- 4.2.1 The Trustee shall have the power to determine income to be of a particular type or character and to determine to distribute or accumulate according to the nature, type, source or character of such income.
- 4.2.2 In making such determination the Trustee shall have regard to the income source and whether it is
- (a) a business operated by the Trust
 - (b) real estate rented, leased or occupied for profit
 - (c) a bond
 - (d) a debenture
 - (e) a loan of whatever nature whether secured or unsecured
 - (f) a share in the capital of a corporation whether fully franked partly franked or unfranked
 - (g) ex Australian
 - (h) entitled to or has the attached to it a foreign tax or other credit
 - (i) exempt from or otherwise not liable to be taxed
 - (j) of a character or status that has or gives rise to any other separate identifiable taxation consequence or benefit.
 - (k) a gift
 - (l) a windfall
 - (m) an activity permitted by this Deed
 - (n) any combination of the above
- 4.2.3 In the event that the Trustee shall fail to make a determination for a particular income year, income shall have the character and be distributed in accordance with the determination made in the immediately preceding income year and, if the Trustee shall have failed to make a determination in the preceding year, the income shall maintain the type and character attributed to it at its source and there shall be no deemed distribution until such time as the Trustee makes a determination.
- 4.3 The Trustee may at any time prior to the expiration of any Accounting Period which ends before or upon the Vesting Day determine with respect to all or any part or parts of the nett income of the Trust Fund for such Accounting Period:
- 4.3.1 to pay apply or set aside the same for such charitable purposes as the Trustee may think fit
 - 4.3.2 to pay apply or set aside the same for any one or more of the General Beneficiaries living or in existence at the time of the determination
 - 4.3.3 to accumulate the same
- and insofar as there is no determination with respect to any income then the same shall be accumulated.
- 4.4 The following provisions shall apply to any determination made concerning income and income distribution:



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- 4.4.1 the validity of any determination to accumulate income shall be conditional upon the law in force in relation to this Settlement permitting the same at the end of each Accounting Period and shall (except as provided in the next succeeding paragraph) be irrevocable
- 4.4.2 if at the end of any Accounting Period the aggregate of the amounts of income in respect of which determinations shall have been made pursuant to paragraph 4.1 of this clause shall exceed the nett income of the Trust Fund for such period then an amount equal to the excess shall be deducted from any income of such period which the Trustee shall have determined to accumulate and only the balance (if any) of such amounts shall continue to be accumulated and if such nett income shall be insufficient to satisfy determinations made for the purposes and objects referred to in paragraph 4.3 then to the extent of the deficiency the Trustee shall be deemed and taken to have applied the capital of the Trust for such purposes and objects
- 4.4.3 a determination to pay apply or set aside any sum to or for the benefit of any beneficiary may be effectually made and satisfied by placing such amount to the credit of such beneficiary in the books of the Trust or by paying the same over to or for the benefit of such beneficiary in such manner as the Trustee shall think fit
- 4.4.4 in making any determination the Trustee may apply or set aside any amount to or in favour of one or more of the beneficiaries in such proportions and in such manner as the Trustee shall think fit
- 4.4.5 the Trustee shall have an absolute discretion as to the making of any determination and shall not be required to assign any reason therefore.
- 4.5 Any income which the Trustee shall accumulate shall be dealt with as an accretion to the capital of the Trust Fund but the Trustee may at any time or times resort thereto and may pay or apply the whole or any part thereof as if it were current income of the Trust Fund.
- 4.6 The Trustee shall hold so much of the net income of the Trust Fund for each Accounting Period as shall not be the subject of a determination effectively made at or prior to the end of an Accounting Period pursuant to clause 4.1 in trust until such time as a determination shall be made or the Vesting Day shall occur.
- 4.7 Any amount set aside for any beneficiary and any amount held by the Trustee in trust for any person pursuant to sub-clause 4.5 shall not form part of the Trust Fund but upon such setting aside or becoming subject to such trust (as the case may be) shall thenceforth be held by the Trustee as a separate Trust Fund on trust for such person absolutely with power to the Trustee pending payment over thereof to or for the benefit of such person to invest or apply or deal with such fund or any resulting income therefrom or any part thereof as the Trustee shall think fit for the benefit of such person.

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5. **PURPOSE OF THE TRUST**

As from the Vesting Day the Trustee shall stand possessed of the Trust Fund and the income thereof:

- 5.1 In trust for such of the beneficiaries and for such charitable purposes for such interests and in such proportions and for one to the exclusion of the other or others as the Trustee may by instrument in writing irrevocable or revocable before the Vesting Day appoint **PROVIDED THAT** any such revocable appointment may be revoked by the Trustee until the end of the day preceding the Vesting Day when it shall become irrevocable and **PROVIDED FURTHER** that in the case of any property which has come into the possession of the Trustee pursuant to paragraph (2)(c) or sub-paragraph (2)(d)(ii) of section 102AG of the Taxation Law the beneficiary or beneficiaries who have received the benefit of the income from such property whilst infants must acquire such property on the Vesting Day.
- 5.2 Insofar as any part of the Trust Fund shall not have been disposed of in accordance with sub-clause 5.1 then in trust for the Specified Beneficiaries absolutely (and if more than one as tenants in common in equal shares) provided always that the children of any Specified Beneficiary who shall have died before the Vesting Day shall take (and if more than one as tenants in common in equal shares) the shares which such deceased Specified Beneficiary would have taken had he she or they survived to the Vesting Day and attained a vested interest and provided also that if any children of a deceased Specified Beneficiary shall die before the Vesting Day then the issue of any such deceased Specified Beneficiary remoter than his her or their children and living at the Vesting Day shall take per stirpes and equally between them the share which such children would have taken if they had survived to the Vesting Day and attained a vested interest.
- 5.3 Insofar as any part of the Trust Fund shall not have been disposed of in accordance with sub-clauses 5.1 and 5.2 then on trust for such of the brothers and sisters of each Specified Beneficiary (and if more than one as tenants in common in equal shares) as shall be living at the Vesting Day provided that if any of the brothers and sisters of any Specified Beneficiary shall be deceased the child of any such deceased brother or sister (and if more than one as tenants in common in equal shares) shall take any share which such brother or sister would have taken if he she or they had survived until the Vesting Day and had attained a vested interest and the issue of any such brother or sister remoter than his her or their children shall take per stirpes and equally between them the share which any deceased child of such brother or sister would have taken if he she or they had survived until the Vesting Day and had attained a vested interest.
- 5.4 Insofar as any part of the Trust Fund shall not have been disposed of by the foregoing provisions then on trust for the next-of-kin (but excluding the Settlor or any person claiming under or in right of the Settlor) of the Specified Beneficiaries or of the survivor of the Specified Beneficiaries living at the Vesting Day (and if more than one as tenants in common in equal shares) absolutely and if there shall be no such next-of-kin then upon trust for such charitable objects or purposes as the Trustee shall determine any resulting trust to the Settlor or any person claiming under or in right of the Settlor being hereby expressly negated.

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6. ***BENEFITS TO BE IN ADDITION TO ANY OTHER BENEFITS***

Any benefits conferred upon any beneficiary hereunder shall be in addition to and not in substitution for any provision which may be made by the Settlor for such beneficiary whether by Settlement or otherwise.

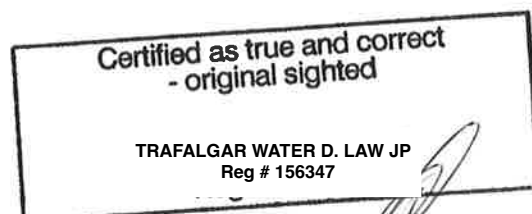
7. ***TRUSTEE MAY DEAL WITH TRUST FUNDS***

The Trustee may in the Trustee's absolute discretion notwithstanding anything to the contrary herein contained or provided:

- 7.1 At any time or times and from time to time before the Vesting Day out of the capital of the Trust Fund raise any sum or sums of money and pay the same (either in addition to or in substitution for share of income) to any beneficiary for his , her, or its own use and benefit or apply the same to or for the benefit of such beneficiary in such manner as the Trustee shall think fit.
- 7.2 At any time or times and from time to time before the Vesting Day to set aside out of the capital of the Fund to or for the benefit of any beneficiary a fixed entitlement to a share or portion of the Fund and thereafter to stand possessed of that fixed portion or share as a fixed trust for the sole and absolute benefit of the beneficiary to the exclusion of all others with the right in respect of that share or portion to fix a Vesting Day that is a day other than the day fixed in respect of any other part of the Fund.
- 7.3 At any time or times and from time to time before the Vesting Day lend any sum of money whether from capital or income to any beneficiary either with or without security and upon such terms and conditions as to repayment and with or without interest as the Trustee shall think fit.
- 7.4 At any time or times and from time to time pay or apply to or for the benefit of any beneficiary the whole or any part of the capital or income to which he she they or it are absolutely or contingently entitled or in which he she they or it have an expectancy (notwithstanding that the interest is liable to be defeated by the exercise of any power or appointment or revocation or to be diminished by the increase of the class to which such beneficiary belongs) in such manner and subject to such terms and conditions as the Trustee shall think fit and without limiting the generality of the foregoing for the maintenance education advancement or benefit of such beneficiary and may in the exercise of such power pay the same to any parent guardian Trustee or Administrator of any infant beneficiary or any beneficiary subject to a disability without being bound to see to the application thereof.

8. ***ADDITIONAL POWERS***

The Trustee shall in addition to the powers otherwise conferred upon trustees by law have the following powers:



8.1 ***Invest Money***

To apply and invest all moneys at any time forming part of the Trust Fund in any such investments whether involving liabilities or not or upon personal credit with or without security and upon such terms and conditions as the Trustee shall exercising an absolute discretion think fit and to the intent that the Trustee shall have the same powers in all respects as if the Trustee were absolute owner beneficially entitled including without diminishing the generality of the foregoing the subscription for the taking up on allotment and the purchase of any shares stocks bonds mortgages debentures obligations or securities of any government authority or corporation incorporated in any part of the world and the taking of and the purchase or acquisition of the whole or any part or share or interest in (including a minority part or share or interest in) any business or partnership and the goodwill and assets thereof and the purchase or acquisition of any real or personal property wheresoever situate or any part or share or interest therein and notwithstanding that the same not be income producing or be of a wasting or speculative nature and to exercise all rights and privileges and perform all duties and obligations appertaining or incidental thereto.

8.2 ***Purchase Investments***

To make or purchase any such investments for cash or in consideration of an annuity or otherwise and upon such terms and conditions as the Trustee shall in the Trustee's absolute discretion think fit and may make or purchase any such investment for a sum greater than the amount of the Trust Fund for the time being and the Settlor may agree to pay for any such investment wholly or in part from any future moneys which may come into the Trustee's hands including dividends profits interest or other income paid or payable in respect of any such investments.

8.3 ***Lend and Borrow Money***

To advance and lend moneys and to borrow and raise moneys from and to secure by mortgage or otherwise howsoever the payment of money to any persons firms corporations or government or municipal bodies (including any beneficiary) and upon such terms with or without security or interest as the Trustee shall deem fit and the Trustee is hereby expressly empowered to join with any Corporation or natural person in executing any mortgage bond covenant guarantee or other document for the purpose of securing the payment of money to the Trustee jointly with any corporation or natural person or for the purpose of securing the payment of money to any corporation or natural person including entering into any option agreement relating to any lending or financing facility, agreement or transaction.

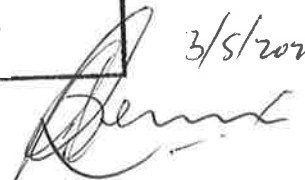
8.4 ***Give Guarantees***

To guarantee and give any indemnity or covenant or assume any obligation (whether alone or jointly with any person or persons natural or corporate) for the payment of moneys or the performance of any agreement, contract, obligation or undertaking by any person, firm, corporation, or association and to secure the liability arising from any such guarantee, indemnity, covenant or obligation by charging or mortgaging (whether by fixed or floating charge or otherwise) the whole or any part of the Trust Fund including any property which may subsequently be acquired by the Trustee so that it will form part of the Trust Fund; any such mortgage or charge shall be valid in all respects as if it were a mortgage of the

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purpose for which such guarantee, indemnity, covenant or obligation has been given and the rights of the beneficiaries hereunder and all other persons whatsoever, and the Trustee is hereby expressly empowered to join with any corporation or natural person in executing any mortgage, charge, deed or other document for the purposes of this Clause.

8.5 ***Vary Investments***

To vary or transpose any investments into or for any other or others of any nature whatsoever and to vary the terms of or property comprised in any security.

8.6 ***Deal with Property***

To hold use purchase construct demolish maintain repair renovate reconstruct develop improve sell transfer convey surrender let lease exchange take and grant options or rights in any mortgage charge pledge reconvey release discharge or otherwise deal with any real or personal property and in particular with shares debentures or securities of any corporation and with or without deferred restricted qualified or special rights relating thereto.

8.7 ***Purchase Insurance***

To purchase or acquire any reversionary or deferred property or rights of any description or any life or life endowment or sinking-fund or term or other policy or policies of insurance of whatsoever nature and at or subject to any premium or premiums whether single or payable periodically and with or subject to any options rights benefits conditions or provisions whatsoever and to pay out of the income or capital of the Trust Fund as the Trustee in The Trustee's discretion thinks fit all sums payable from time to time for premiums or otherwise for the effecting or maintenance of any policy or policies of insurance (whether owned by the Trustee or otherwise) or for the exercise or enjoyment of any option right or benefit thereunder and any surrender of any such policy or policies shall for all the purposes of this Settlement be deemed to be a sale thereof.

8.8 ***Pay Costs and Taxes***

To pay out of the Trust Fund or the income thereof all costs charges and expenses incidental to the preparation of this Settlement and the setting up and management of the Trust Fund and to the exercise of any power authority or discretion herein contained or in carrying out or performing the trusts hereof which may at any time be incurred and whether or not the Trustee shall be liable therefor including all income tax or other taxes payable in respect of the Trust Fund costs in any way connected with the preparation and execution of these presents and all moneys which may be required to be paid as Settlement gift stamp or revenue duties in respect of the Trust Fund or any application thereof or any accretion or addition thereto or on these presents and to give effect to the Trustee's power to pay Income Tax or other taxes payable in respect of the Trust. The Trustee may exercising an absolute discretion set aside in respect of any amount of income paid applied or set aside for any beneficiary under any part of this Deed and pay a sum out of the income of the Trust Fund as is in the opinion of the Trustee sufficient to meet the obligations of the Trustee for income tax or other tax for that financial year on that amount pursuant to any law which imposes income tax or other tax on the Trust or Trustee and:



- 8.8.1 to the extent that any sum so set aside is inadequate to meet the tax actually assessed the Trustee may without prejudice to any other rights given to the Trustee by law or by this Deed resort to the income of the Trust Fund for any subsequent financial year or may recover the amount of any inadequacy from any funds held by the Trustee on behalf of a beneficiary in respect of whose income the assessment is issued
- 8.8.2 if and whenever it shall appear to the Trustee that any sum so set aside was in excess of any income tax liability of the Trustee the excess shall be credited in the books of account of the Trust Fund to the beneficiary in respect of whose income the assessment was made and shall be treated as though it had been paid applied or set aside for that beneficiary in the financial year in which the provision was first made

PROVIDED THAT nothing in this clause shall oblige the Trustee to set aside any sum aforesaid or affect any rights of the Trustee in the event of any assessment of tax being made against the Trustee in respect of any amount so paid or applied or set aside to any beneficiary of this Deed.

8.9 ***Deal with Corporation in which Trustee may have an Interest***

With respect to any corporation in which the Trustee holds shares stocks or debentures or is otherwise interested or concerned to exercise all such powers and do all such acts matters and things as the Trustee could do if the Trustee were the beneficial owner of the shares stock or debentures or where personally interested or concerned in the Corporation and without prejudice to the generality of the foregoing to exercise all or any of the following powers:

- 8.9.1 to pay calls on any shares or to permit any such shares to be forfeited and sold
- 8.9.2 to purchase any further shares stock or debentures of a new issue of any such corporation
- 8.9.3 to lend money to any such corporation whether secured by debentures or in any other way or not secured and at such rate of interest and upon such terms as the Trustee thinks fit
- 8.9.4 to hold any shares stock or debentures acquired by the Trustee pursuant to the powers conferred by statute or otherwise by law or by this clause for as long as the Trustee thinks fit
- 8.9.5 to sell any shares stock or debentures held by the Trustee at such price as the Trustee thinks fit (whether or not such price is less than the sum that appears from the accounts of the Corporation to be the value of such shares stocks or debentures) and upon such terms with or without security as the Trustee thinks fit
- 8.9.6 to assent to or join in any arrangement relating to the sale or transfer or exchange of any such shares stock debentures or interest or modifying any rights or privileges or interest in relation thereto and to agree to any scheme or arrangement for the increase or reduction of the value or

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amounts of any shares or stock or of the capital of any corporation in which any shares stock or investments forming the whole or any part of the Trust Fund for the time being may be invested or by which any such shares stocks or investments are substituted or given in exchange either wholly or partly for other shares stocks or investments whether in the same corporation or not and for any such purpose to deposit surrender or exchange any scrip or document of title relating thereto and to pay out of the capital of the Trust Fund or the income thereof any contribution or incur any necessary expense in connection with such scheme or arrangement and generally to manage and deal with any such shares stock or investments as if the Trustee owned them beneficially

8.9.7 to agree in respect of a winding up of any Corporation in which the Trustee may for the time being hold shares or is otherwise concerned or interested with the liquidator of such corporation or any member or members of such corporation or any other person in all things as the Trustee shall in the Trustee's absolute discretion think fit for the division or partition in kind or specie of the assets or property of whatsoever nature of such corporation and to accept any of such assets and property in payment or satisfaction of any interest of the Trustee in such corporation with power to pay any moneys by way of equality of division or partition.

8.10 ***Carry on Business***

To carry on anywhere in the world and either alone or in partnership any trade or business whatsoever and to discontinue the same from time to time.

8.11 ***Employ Persons***

To employ any person (including any Trustee and/or Beneficiary hereof) in connection with any trade or business carried on by the Trustee or in connection with anything required to be done pursuant to the provisions hereof including the receipt and payment of money and to decide the remuneration to be allowed and paid and the amount of all charges and expenses and to create or arrange any scheme or superannuation retirement benefit or pension for the benefit of any person so employed.

8.12 ***Partition and Subdivision of Land***

To partition or agree to the partition of or to subdivide or agree to the subdivision of any land or other property (or any interest in same) which may for the time being be subject to the trusts hereof and to pay any moneys by way of equality or partition.

8.13 ***Establish Corporations***

To establish promote or acquire any corporation or corporations or join in the promotion establishment or acquisition of any corporation or corporations.

8.14 ***Set Aside Part of Fund for Benefit of Beneficiaries***

To appropriate any part or parts of the Trust Fund in the actual condition or state of investment thereof in or towards the satisfaction of the interest of any person in the Trust Fund and in making such appropriation to

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component parts of the Trust Fund or to employ such persons to make such valuation as in the circumstances the Trustee deems proper without obtaining any consents otherwise required by law and every appropriation so made shall bind all persons interested in the Trust Fund notwithstanding that they may not yet be in existence or be under a legal disability.

8.15 *Determining Whether Capital or Income*

To determine whether any real or personal property or any increase or decrease in amount number or value of any property or holdings of property or any receipt or payments from for or in connection with any real or person property shall be treated as and credited or debited to capital or to income and generally to determine all matters as to which any doubt difficulty or question may arise under or in relation to the execution of the trusts and powers of this Settlement and every determination of the Trustee in relation to any of the matters aforesaid whether made upon a question formally or actually raised or implied in any of the acts or proceedings of the Trustee in relation to the Trust Fund shall bind all parties interested therein and shall not be objected to or questions on any ground whatsoever.

8.16 *Operate Accounts*

To open any account or accounts with any bank banks building society or building societies and to operate by and in all usual ways any such account or accounts and to draw make accept endorse discount issue or otherwise deal with any Promissory Note Bill of Exchange Bill of Lading Cheque or other negotiable or transferable instrument.

8.17 *Receive Moneys*

To give effectual receipts and discharges for any moneys received by or on behalf of the Trust or otherwise in relation to any of the acts matters and things provided for in this Settlement.

8.18 *Grant Options*

To grant options in respect of any assets held subject to the trusts of this Settlement to any person firm or corporation.

8.19 *Become a Director*

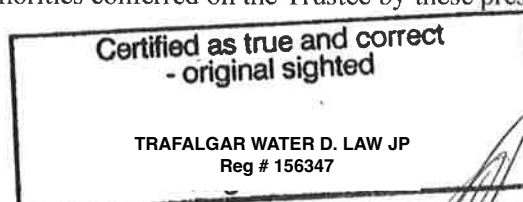
To become a Director of any corporation in which moneys forming a part of the Trust Fund are invested or to appoint any person to act as Director of any such corporation and to receive the remuneration attached to such office without accounting to the Trust therefor provided that the Trustee executes all proper declarations of trust for any shares held by the Trustee on behalf of the Trust and accounts to the Trust for all dividends and bonuses.

8.20 *Exercise Additional Powers*

To exercise such additional or other powers (if any) as are set out in the Schedule.

8.21 *Take Action to Protect the Trust*

To take such action as the Trustee shall think fit for the adequate protection of any part or parts of the Trust Fund and to do all such things as may be incidental to the exercise of the powers and authorities conferred on the Trustee by these presents.



8.22 *Act on Opinion of Lawyer*

To take and act upon the opinion (given in writing) of any legal practitioner attorney at law or Counsel practising in any country where the Trust Fund or any part thereof may for the time be invested in relation to the interpretation or effect of these presents or any other document or statute or as to the administration of the trusts hereof without being liable to any of the persons beneficially interested in respect of any act done by the Trustee in accordance with such opinion provided that nothing in this provision shall prohibit or impede the Trustee from applying to any Court if the Trustee shall think fit or prohibit any of the beneficiaries from so doing.

8.23 *Appoint Trustee*

In any conditions or circumstances which the Trustee thinks expedient to appoint either in respect of the whole of the Trust Fund or any part thereof a Trustee in any country or state in the world other than the place of Proper Law of the Trust and to transfer assign and set over the investments for the time being representing the Trust Fund or any part thereof to any such Trustee upon similar trusts and subject to similar terms and conditions to those declared in this Settlement and either subject to the control of the Trustee of this Settlement or to the exclusion of such control AND the Trustee of this Settlement shall be indemnified and held harmless against any loss which may arise from the exercise of this power.

8.24 *Sell or Lease Properties*

To sell transfer hire lease or dispose of any real or personal property of the Trust Fund or to lend or advance any monies to the Trustee or where the Trustees be individuals any of them in their personal capacity or in the capacity of Trustee of another Trust Fund or otherwise howsoever or to any corporation or partnership whatsoever notwithstanding that the Trustee may be a shareholder or where the Trustees be individuals a shareholder or director or member or partner of such corporation or partnership or to a spouse child or children of the Trustee AND to buy transfer acquire hire or lease any real or personal property or to borrow any monies from the Trustee in a personal capacity or in a capacity as Trustee of other Trust Funds or otherwise howsoever or from any corporation or partnership or where the Trustee be individuals from the spouse or child or children of the Trustee or any of them AND to carry on or carry out any profit making undertaking or scheme in partnership with the Trustee personally or as Trustee of other Trust Funds or otherwise howsoever or with any corporation or partnership whatsoever notwithstanding that the Trustee is a shareholder or where the Trustee be individuals a director or member or partner of such corporation or spouse or child or children of the Trustee or any of them AND generally to deal with the Trustee or where the Trustees be individuals any of them in their personal capacity in all respects as if there were two separate persons to the dealings and without limiting the generality of anything herein contained the Trustee shall have power and an absolute discretion to sell to it him her or themselves in a capacity as Trustee of other Trust Funds either for cash or upon terms any assets being shares or a joint undivided interest in property where other shares in the same corporation or corporations or other joint or undivided interest in the same property are held by the Trustee in such other capacity as aforesaid AND to divide assets in specie between the Trust Fund and such other Trust Funds in such manner as the Trustee shall think fit provided however that the Trustee shall ~~act bona fide in~~ the best interests of the Trust Fund.

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8.25 Pay Beneficiary for Work

To remunerate any beneficiary who is at any time in the employ of the Trustee to the same extent and in the same manner as if the beneficiary so employed were not a beneficiary hereunder and all bona fide payments made by the Trustee to any such beneficiary in the form of remuneration for services rendered or to be rendered or on account of expenses in connection with such employment shall not be or be deemed to be payment to the beneficiary of or on account of his share in the Trust Fund or the income thereof.

8.26 Permit Nominee to Hold Property

To permit any asset of the Trust to be held or registered in the name of any nominee of the Trustee and to deposit securities to the Settlements and other documents belonging or related to the Trust Fund with any bank, building society, trustee corporation, legal practitioner, accountant, or the like.

8.27 Transfer Property

At any time or times before the Vesting Day by any irrevocable settlement or settlements (without infringing any rule against perpetuities applicable to this Settlement) to appoint that the whole or any part of the Trust Fund shall thenceforth be held upon the trusts and with and subject to the powers and provisions of any other settlement (not infringing the rule against perpetuities applicable to this Settlement) and approved by the Trustee in favour or for the benefit of all or any one or more exclusively of the others or other of the General Beneficiaries and upon any such appointment being made the Trustee may transfer to the Trustees or Trustee for the time being of the other settlement the property comprised in the appointment and thereupon the Trusts herein declared concerning such property shall cease and determine and the property shall for all purposes be subject to the trusts powers and provisions contained in the other settlement and be subject to and governed by the proper law of the other settlement whether such proper law shall be the proper law of this settlement or not.

8.28 Pay Death Duties

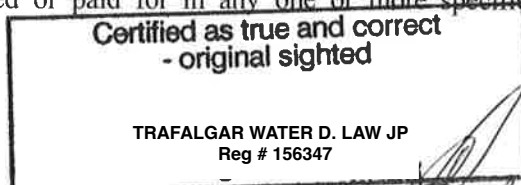
In the event of any probate succession estate or other duties fees or taxes becoming payable in any part of the world in respect of the Trust Fund or any part thereof on the death of the Settlor or on the death of any beneficiary or any other person at the Trustee's absolute discretion to pay all or any part of such duties fees and taxes out of the Trust Fund notwithstanding that such duties fees or taxes or some part thereof are not or may not be recoverable from the Trustee or from the Trust Fund by legal process in the place where the same become payable.

8.29 Appoint Attorney

The Trustee may in writing delegate the exercise of all or any of the powers or discretionary authorities hereby conferred on the Trustee and execute any powers of attorney or other instruments necessary to give effect to such purpose.

8.30 Allocate Income to Beneficiaries

In allocating or paying to a beneficiary any sum to which such beneficiary shall be entitled, to determine in the absolute discretion of the Trustee, that the whole or any part of such shall be allocated or paid for in any one or more specified



category or categories or class or classes of income or capital of the Trust Fund together with all rights and such benefits attaching or incidental thereto. Without limitation such generality of the categories or classes of income shall include interest, rental income, franked dividends, unfranked dividends, and trading income, and categories or classes of capital gain shall include taxable capital gains and non-taxable capital gains.

8.31 ***Lease Property to Beneficiary***

To Lease any capital real or capital personal property to any beneficiary upon such terms as to payment of rent or otherwise and for such period as the Trustee shall deem appropriate.

8.32 ***The Trustee May Act Notwithstanding any Interest in Transaction***

The Trustee may exercise or concur in exercising all powers and discretions hereby or by law given to the Trustee notwithstanding that the Trustee may have a direct or other personal interest in the mode or result of exercising any such power or discretion and the Trustee may further exercise or concur in exercising all powers and discretions hereby or by law given notwithstanding that it or any person being a Trustee or any person being a director or shareholder of a Trustee hereof being a corporation, may have a direct or personal interest in the mode or result of exercising such power or discretion or may benefit either directly or indirectly as a result of the exercise of any such power or discretion or may have a conflict of interest between the interest of the Trustee and the interest of the Fund.

8.33 ***Acquire Units***

To acquire units or sub-units of any fixed or flexible unit trust whatsoever either by way of application purchase or by way of settlement by the trustee in the establishment of such unit trust and to exercise all rights including voting rights and perform all obligations as a holder of any units in such trust and to accept all distributions by the trustee of such unit trust as income or capital of the fund.

8.34 ***Receive money or Assets under Section 102AG***

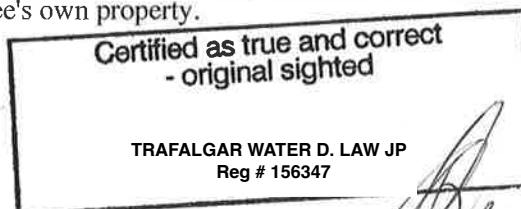
To receive, hold and treat as part of the fund and money asset or item of property whether real or personal from any person as a result of a distribution, payment, or allocation made under the provisions of section 102AG of the Taxation Law **Provided However** that before the Trustee shall accept any such payment transfer or assignment the Trustee shall first make and execute in writing a declaration such as may be reasonably required by law to ensure that the benefits granted by section 102AG are preserved.

8.35 ***Receive Property by Gift***

To receive property by gift or Will or under the provisions of another Trust or otherwise and either from the Settlor or from any other person and treat the same as an addition to the Fund.

8.36 ***Act Generally***

Generally to do all such acts and things in relation to the management and administration of the Trust Fund as are permitted by law and as the Trustee could do if the Fund were the Trustee's own property.



9. ***ACT JOINTLY AND TO DELEGATE***

The Trustee if more than one shall act jointly. The Trustee may in writing delegate the exercise of all or any of the powers or discretionary authorities hereby conferred on the Trustee and may in addition to the powers given in clause 8.29 execute any power of attorney or other instruments necessary to give effect to this power.

10. ***APPOINT ALTERNATIVE TRUSTEE***

Each of the Trustees may with the consent of the other or others (if there be another or others) appoint any person to be an alternate Trustee in his her their or its place but so that any such appointment shall have effect only during such period as such Trustee (and in the case of a corporation all the directors) shall be absent from the place where the Trust Fund is being administered or in the case of an individual subject to an illness lasting for more than one month and any such Trustee may by writing revoke or alter any such appointment.

11. ***TRUSTEE'S DECISIONS ABSOLUTE***

Subject always to any express provision to the contrary herein contained every discretion vested in the Trustee shall be absolute and uncontrolled and every power vested in the Trustee shall be exercisable in the Trustee's absolute and uncontrolled discretion without any obligation to consider competing claims of beneficiaries.

12. ***TRUSTEE NOT RESPONSIBLE***

The Trustee shall not be responsible for:

- 12.1 Any loss or damage occasioned by the exercise of any discretion or power hereby or by law conferred on the Trustee or by any failure to exercise any such discretion or power or
- 12.2 Any breach of duty or trust whatsoever unless it shall be proved to have been committed or omitted knowingly in bad faith by the Trustee.
- 12.3 The Trustee acting in good faith shall be entitled to be indemnified out of the Trust Fund in respect of all liabilities incurred by the Trustee relating to the execution of any powers duties authorities or discretions vested in the Trustee under the provision of this Deed and in respect of all actions proceedings costs claims and demands in relation to any matter or thing done or omitted to be done concerning the Trust Fund. ***PROVIDED ALWAYS*** that the right of the Trustee to be indemnified in respect of any liability incurred by the Trustee or arising in or about the investment and administration of the Trust Fund in the conduct and management of any business forming part of the Trust Fund in the acquisition of any investment under any contract entered into by the Trustee or by reason of the execution of any power duty authority or discretion vested in the Trustee shall be limited always to the assets of the Trust Fund in the hands of the Trustee for the time being and shall not extend to enable the Trustee to recover any loss or obtain reimbursement for such liability from any Beneficiary.

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13. ***SOLE TRUSTEE MAY ACT***

A SOLE Trustee hereof for the time being is hereby authorised notwithstanding that he she or it is the sole Trustee to receive capital and other moneys and to give valid and effectual receipts therefor for all purposes and for the purposes of any statutory enactments including the receipt of capital moneys which may or may not be deemed to be capital moneys for the purposes of any Statute.

14. ***LEGAL PRACTITIONER OR ACCOUNTANT MAY CHARGE FEES***

Any Trustee hereof who may be a Legal Practitioner or Accountant or any firm of which he she or it may be a member shall be entitled to make all usual and proper charges for both professional and other services in the administration of the Trusts hereof and for time and trouble that would have been chargeable for if not a Trustee and so employed.

15. ***TRUSTEE SHALL KEEP ACCURATE RECORDS***

The Trustee shall keep complete and accurate records of all receipts and expenditures on account of the Trust Fund. Promptly after the close of each Accounting Period the Trustee shall prepare a written accounting report for such period consisting of a balance sheet a statement of receipts and disbursements and a list of assets held at the close of such year and a copy thereof shall be furnished upon request to the Guardian and if there is no Guardian alive to each of the Specified Beneficiaries. If so required by the Guardian (or if there is no Guardian alive by the Specified Beneficiaries) the accounting report shall include the names and addressed of all persons or firms having custody of all or any portion of the assets of the Trust Fund.

16. ***APPOINTMENT AND REMOVAL OF TRUSTEE GUARDIAN AND APPOINTOR***

16.1 The Appointor and on the death or resignation of the last surviving Appointor such other person as the Appointor shall have appointed to act as Appointor and on default of such appointment his or her legal personal representatives shall be entitled by instrument in writing at any time and from time to time:

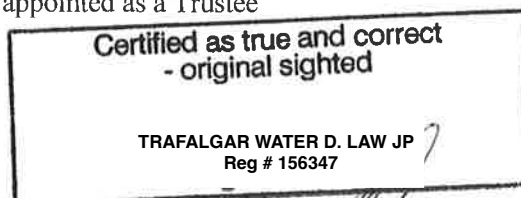
16.1.1 To remove any Trustee hereof

16.1.2 To appoint any additional Trustee or Trustees

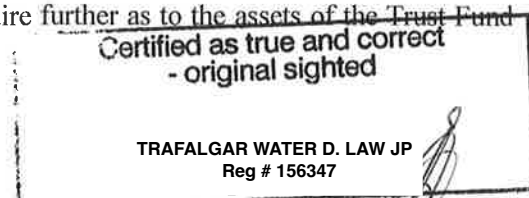
16.1.3 To appoint a new Trustee or Trustees in the place of any Trustee who resigns abandons the appointment or ceases to be a Trustee by operation of law

PROVIDED

16.1.4 If and so long as the Appointor is a General Beneficiary the Appointor shall not be eligible to be appointed as a Trustee



- 16.1.5 If there is no Appointor named in the Schedule or if at any time there is no one entitled to exercise the power of removal and appointment, the statutory and other rights of removing and appointing Trustees may be exercised by the Trustee or by the legal personal representatives of the last surviving Trustee or (if the Trustee be a Corporation) the Administrator or the liquidator of the Trustee and in the event that a Trustee shall be removed or cease to act by reason of any of the matters set out in Clause 16.3 the power to appoint a new Trustee shall be exercised by majority vote of the Specified Beneficiaries and if there be a deadlock that cannot be resolved by mediation by the Settlor or the Legal Personal Representative of the Settlor as the case shall require.
- 16.2 Any Trustee Guardian or Appointor and any person who may by succession become a Trustee Guardian or Appointor may resign or renounce such position by notice in writing to the Trustee and forthwith upon the giving of such notice the person giving the same shall for all purposes hereunder cease to be a Trustee Guardian or Appointor or to be a person who may by succession become a Trustee Guardian or Appointor (as the case may be) and shall cease to be subject to the disqualification (if any) provided for in Clauses 1.2.8 and 19 provided that if at any time there is no Appointor entitled to exercise the power of appointment hereinbefore provided a sole surviving Trustee shall not resign except upon appointing a new Trustee or new Trustees.
- 16.3 The offices of Trustee and Appointor shall be ipso facto determined and vacated if such Trustee or Appointor being an individual shall be found to be a lunatic or of unsound mind or if a Trustee or Appointor shall become subject to the bankruptcy laws or if a Trustee or Appointor shall remain out of the place in which this trust is for the time being administered for more than twelve months or be found guilty (or admit guilt) in respect of an act of dishonesty touching or concerning this Settlement or if such Trustee or Appointor being a corporation shall enter into liquidation whether compulsory or voluntary (not being merely a voluntary liquidation for the purposes of amalgamation or reconstruction) or if any of its directors be found guilty (or admit guilt) in respect of any act of dishonesty touching or concerning this Settlement except in the case that if the director or directors involved in the act or acts of dishonesty make good the loss thereby occasioned and immediately resign their position as directors upon being found guilty or making the admission of guilt the Trustee or Appointor being a corporation may continue so to act.
- 16.4 A copy of all notices of change in the Trusteeship shall be endorsed on or attached to these presents and every such notice shall be sufficient evidence to any person having dealings with the Trustee of this Settlement as to the facts to which it relates.
- 16.5 Any person dealing with the Trustee may rely upon a copy of this Deed and of the notices endorsed on or attached to it certified by the Trustee or the Trustee's legal practitioner to the same extent as he, she or it might rely on the original.
- 16.6 Any person becoming a Trustee of the Trust Fund may accept the account rendered and the property delivered to the Trustee by the continuing Trustee or predecessors in office without being bound to enquire further as to the assets of the Trust Fund



and any person ceasing to be a Trustee hereof may be given a full and complete discharge by the Appointor.

17. ***DETERMINATIONS OF TRUSTEE***

Any determination by the Trustee in exercise of any power discretion or authority conferred on the Trustee by this Settlement may be made in writing signed by all the Trustees or by a resolution passed at a meeting of the Trustees or by a resolution of the Directors of a corporate Trustee. In the event of disagreement between the Trustees or Directors as to any matter affecting the trust Fund or as to the exercise or omission or abstention from exercising any of the Trustees' powers and discretions hereunder:

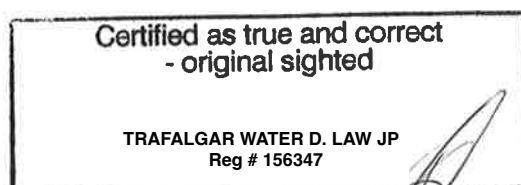
- 17.1 The matter for decision shall be referred to a vote of all the Trustees or Directors (either at a meeting of the Trustee or by post or by electronic medium).
- 17.2 In the event of there being a majority for or against the proposal the Trustee shall give effect to the wishes of such majority as though it were a decision by all the Trustees or all the Directors.
- 17.3 In the event of deadlock the matter shall if any Trustee or where the Trustee is a corporation any director of the Trustee so requires be referred for mediation in the manner provided for in Clause 25 as if the deadlock were a dispute between a beneficiary and the Trustee. In the event that the deadlock cannot be resolved by mediation then if any Trustee so requires and in the case of the Trustee being a corporation any director of the Trustee so requires the matter shall be referred for decision by an Arbitrator to be appointed by the President for the time being of the Institute of Arbitrators Australia for Arbitration pursuant to any Arbitration law currently in force under the proper law of this Trust and the Trustee shall give effect to the award of the Arbitrator as though it were a decision by all Trustees or Directors and this Clause may be produced and pleaded as a bar to commencement of any court proceedings where there has been no Mediation and no Arbitration except in the case that the Trustee or Trustees fail to give effect to the Arbitrator's decision (except in the case of an appeal of the Arbitrator's decision).

18. ***TRUSTEE MAY CONCUR IN DISCRETION***

Every Trustee who is a corporation may exercise or concur in exercising any discretion or power hereby conferred on the Trustee by a resolution of its Board of Directors and if the corporation be a single director corporation, by the decision of the single Director.

19. ***TRUSTEE MAY AMEND DEED***

The Trustee for the time being may at any time and from time to time by Deed revoke add to vary all or any of the provisions of this Deed or the Trust herein created or any variation or alteration or addition made from time to time including any beneficial interests hereunder and may by the same or any other Deed declare any new or other Trusts or powers concerning the Trust Fund or any part or parts of the Trust but so that any law



against perpetuities is not thereby infringed and so that such new or other Trusts powers discretions alterations or variations:

19.1 Shall be invalid to the extent that they purport to be in favour of or for the benefit of the Settlor or Trustee or any of them or any person claiming under or in right of any such persons or any person who has disposed of any property to the Trustee to be held on the Trusts hereof otherwise than for full consideration or otherwise result in any benefit to the Settlor or Trustee or any of them or any such person.

19.2 Shall not affect the beneficial entitlement to any amount set aside for any beneficiary prior to the date of the variation alteration or addition.

20. ***TRUSTEE MAY CHARGE AND RETAIN COMMISSION***

The Trustee may from time to time charge and retain out of the Trust Fund such Trustee's commission as is reasonable.

21. ***TRUSTEE MAY REFUSE DISCLOSURE***

WITHOUT prejudice to any right under the general law of the Trustee to refuse disclosure of any document it is hereby declared that the Trustee shall not be bound to disclose to any person any of the following documents that is to say:

21.1 Any document disclosing any deliberations of the Trustee (or any of them) as to the manner in which the Trustee should exercise any power or any discretion conferred upon the Trustee by this Settlement or disclosing the reasons for any particular exercise of any such power or any such discretion or the material upon which such reasons were or might have been based.

21.2 Any other document relating to the exercise or proposed exercise of any power or any discretion conferred on the Trustee by this Settlement (not being legal advice obtained by the Trustee at the cost of the trust).

22. ***SETTLOR MAY NOT BENEFIT***

NOT WITHSTANDING anything herein expressed or implied:

22.1 The Trust Fund and the income thereof shall be possessed and enjoyed to the entire exclusion of and of any benefit to the Settlor or any person claiming under or in right of the Settlor whether by contract or otherwise.

22.2 No part of the capital or income of the Trust Fund shall be paid or lent to or applied for the benefit either directly or indirectly of the Settlor or any spouse of the Settlor or of any person claiming under or in right of the Settlor in any manner or in any circumstances whatsoever.

22.3 No power hereby or by any appointment made hereunder or by law conferred upon the Trustee shall be capable of being exercised in such manner that any of the persons referred to in Clause 22.2 will or may become entitled either directly or indirectly to any benefit in any manner or in any circumstances whatsoever.

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22.4 In the event of any addition to the Trust Fund being made by some person other than the Settlor then subject and without prejudice to any express direction to the contrary contained in the instrument or instruments by which the same is added this clause shall apply in relation to such addition and the property from time to time representing the same and the income thereof respectively as if the references to the Settlor and any spouse of the Settlor had included the person by whom the addition was made and any spouse of such person.

23. ***NAME OF TRUST***

The Trusts created by these presents shall be known by the distinguishing name if any set forth in the Schedule.

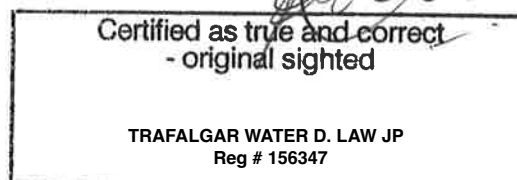
24. ***TRUSTEE TO ACKNOWLEDGE AS TO TAX LAW DUTIES***

No act matter or thing and no conveyance or other instrument done occurring made or entered into pursuant to the powers or authorities herein contained shall be of any legal force or effect if it would but for this clause give rise to liability or alleged liability for any impost tax or duty under any law of the Commonwealth or any state or territory thereof or elsewhere until the Trustee shall have acknowledged to such liability in writing and the Trustee shall have power to cancel revoke and withdraw any instrument or conveyance or the exercise of any power or authority in any case in which the Trustee is not willing to make such acknowledgment as provided that the payment of any duty shall not amount to such acknowledgment if made under protest or subject to objection.

25. ***MEDIATION***

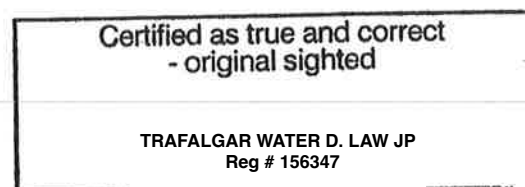
In the event that a dispute shall arise between a beneficiary or a person claiming to be entitled to benefit under this Trust Fund and the Trustee or a dispute between the Specified Beneficiaries under clause 16.1.5 shall be deadlocked the parties must attempt to resolve the dispute by mediation as follows:

- 25.1 Either party may start mediation by serving a mediation notice on the other.
- 25.2 The notice must state that a dispute has arisen and identify what is in dispute.
- 25.3 The parties must jointly appoint a mediator. If the parties fail to agree on the appointment within fourteen days of service of the notice a mediator will be appointed by the Secretary for the time being of the Law Institute or Law Society (as the case requires) of the place of the proper law of this Fund upon the application of either party.
- 25.4 The parties must observe the instructions of the mediator about the conduct of the mediation execute any written agreement that the mediator may reasonably ask them to execute and make a genuine and determined effort to resolve the dispute.



- 25.5 If the dispute is not resolved within twenty days after the mediator is appointed or any other time that the parties are agreed to in writing the mediation ceases.
- 25.6 No request for arbitration may be made nor any application made to a court of law until such time as the parties have attended a mediation meeting.
- 25.7 Each party must pay an equal share of the cost of the mediation to the mediator.
- 25.8 If the dispute is resolved each party must sign the terms of the agreement and the terms are binding on the parties.
- 25.9 The mediation procedure is confidential and written statements prepared for the mediator or for a party and any discussions between the parties and between the parties and the mediator before or during the mediation procedure cannot be used in any legal proceedings. The mediator shall destroy any notes made during the mediation at the end of the mediation.
- 25.10 Except in the case of a dispute between Trustees or the directors of a Trustee corporation upon mediation ceasing either party may commence proceedings in a court of competent jurisdiction.

No part of this Deed may be reproduced without the express permission of the Author.



 3/5/2022

MINUTES OF A MEETING OF THE DIRECTORS OF

WEACH

PTY LIMITED ACN 101 246 539

Held at: Level 9
10 Barrack Street
Sydney
New South Wales 2000

Held On: 4 JULY 2002

Present SILVERS GUNN
NAMI GUNN

ACCEPTANCE OF COMPANY AS TRUSTEE

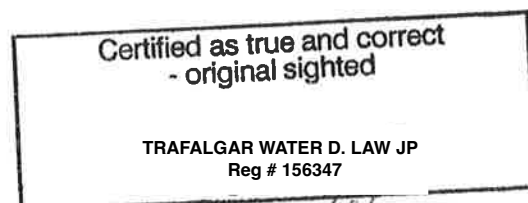
The Chairman informed the meeting that CHOPPER JAMES wishes to create a settlement of \$10.00 for the benefit of persons referred to and described in the deed of Settlement entitled "THE LENNOX FAMILY TRUST" and had requested that the company act as Trustee to the proposed trust created by the Settlement.

The Deed of Settlement was produced and tabled by the Chairman. The nature of the settlement and the terms of the deed were considered.

It was resolved that the Company accept the appointment as Trustee to the trust.

It was further resolved to authorise the affixing of the company Common Seal on the Deed of Settlement.

Signed as a true and correct record
Chairman



IN WITNESS WHEREOF the parties hereto have executed this deed on the

4 JULY 2002

THE SETTLOR

Signed sealed and delivered by

CHOPPER JAMES

in the presence of :



Witness



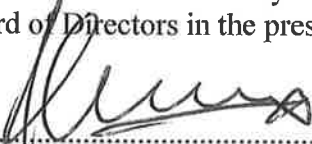
THE TRUSTEE(S):

EXECUTED AS A DEED by the Trustee

WEACH

PTY LIMITED ACN 101 246 539

in the manner provided for in its Articles of
Association or its Constitution by authority
Of its Board of Directors in the presence of



Director

Director/Secretary

Certified as true and correct
- original sighted

TRAFALGAR WATER D. LAW JP
Reg # 156347



3/5/2022

SCHEDULE

Date of making this deed:

Settlor

CHOPPER JAMES
Level 2, 11 Grand Line Sydney
New South Wales 2000

Trustee:

WEACH
PTY LIMITED ACN 101 246 539
Level 9
10 Barrack Street
Sydney
New South Wales 2000

Perpetuity period

79 years

Specified Beneficiaries:

SILVERS GUNN
NAMI GUNN
ACE GUNN
SHANKS GUNN
BROOK GUNN

General Beneficiaries

As specified in clause 1.2, including the Spouse, Grandparents, Parents, Brothers, Sisters, Aunts, Uncles, Nieces, Nephews, Cousins, Children, Grandchildren, of the said Specified Beneficiaries whether natural relatives or adopted relatives and all subsequent issue of any of the above mentioned persons.

Settled sum:

\$10.00

Vesting date:

79 years from the date of the signing of this deed.

Appointor

SILVERS GUNN

Guardian

SILVERS GUNN

Name of Trust

THE LENNOX FAMILY TRUST

Relevant Law

New South Wales

Certified as true and correct
original sighted

TRAFALGAR WATER D. LAW JP
Reg # 156347

3/3/2022